

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Salk	Team: Team # 5	CCRB Case #: 200900281	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 01/02/2009 7:34 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/2/2010	Precinct: 44		
Date/Time CV Reported Tue, 01/06/2009 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/08/2009 12:27 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Rolando Carbonell	06831	928017	NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 John Lindsey	04343	920507	NARCBBX
2. DT3 Nancy Vazquez	02596	916578	NARCBBX
3. DT3 Philip Paradiso	05130	902170	NARCBBX
4. DT3 Gregory Smith	02537	907357	NARCBBX
5. DT3 James Mako	05290	932943	NARCBBX
6. SGT Kathleen McNally	05079	900495	NARCBBX
7. LT James Davis	00000	901419	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Rolando Carbonell	Abuse: At § 87(2)(b) in the Bronx, Det. Rolando Carbonell stopped § 87(2)(b)	A . Substantiated
B . DT3 Rolando Carbonell	Force: En route to § 87(2)(b) in the Bronx, Det. Rolando Carbonell struck § 87(2)(b) with a radio.	B . Unsubstantiated
C . DT3 Rolando Carbonell	Force: At § 87(2)(b) in the Bronx, Det. Rolando Carbonell pointed his gun at § 87(2)(b)	C . Substantiated
D . DT3 Rolando Carbonell	Force: At § 87(2)(b) in the Bronx, Det. Rolando Carbonell used physical force against § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On January 3, 2009, § 87(2)(b) § 87(2)(b) filed this complaint by phone with the Internal Affairs Bureau. On January 22, 2009, she filed a second identical complaint by phone with the CCRB. § 87(2)(b) did not witness the incident, which involved her son, § 87(2)(b) § 87(2)(b). On January 2, 2009, at around 7:30 p.m., § 87(2)(b) left his home on § 87(2)(b) § 87(2)(b) in the Bronx and walked toward a restaurant several blocks away where he intended to meet § 87(2)(b). On his way to the restaurant, he was spotted by two narcotics detectives, Det. Rolando Carbonell and Det. James Mako, driving by in an unmarked vehicle. Det. Carbonell suspected § 87(2)(b) of possessing marijuana and tried to stop him. § 87(2)(b) fled and led the detectives to a nearby deli, where he was forcibly placed under arrest § 87(2)(a) FCT § 380.1 § 87(2)(b). The incident gave rise to the following CCRB allegations:

- **Allegation A – Abuse of Authority: At § 87(2)(b) and East 164th Street in the Bronx, Det. Rolando Carbonell stopped § 87(2)(b) § 87(2)(g).** It is recommended that **Allegation A** be **Substantiated**.
- **Allegation B – Force: En route to § 87(2)(b) in the Bronx, Det. Rolando Carbonell struck § 87(2)(b) with a radio. § 87(2)(g).** It is recommended that **Allegation B** be **Unsubstantiated**.
- **Allegation C – Force: At § 87(2)(b) in the Bronx, Det. Rolando Carbonell pointed his gun at § 87(2)(b) § 87(2)(g).** It is recommended that **Allegation C** be **Substantiated**.
- **Allegation D – Force: At § 87(2)(b) in the Bronx, Det. Rolando Carbonell used physical force against § 87(2)(b) § 87(2)(g).** It is recommended that **Allegation D** be **Unsubstantiated**.
- § 87(4-b), § 87(2)(g)

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-old Hispanic male § 87(2)(b) with brown hair and brown eyes. § 87(2)(b)

Statements to Medical Personnel

Following the incident, § 87(2)(b) went to § 87(2)(b) in the early morning hours of § 87(2)(b). He reported that he was running to meet his mother for dinner when he was told to stop by undercover police. He did not stop, and was chased, tackled and slapped by the police (encl. 22J).

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 23, 2009 (encl. 6). His mother § 87(2)(b) was present for his interview.

At 7:30 p.m. on January 2, 2009, § 87(2)(b) was at home at § 87(2)(b) in the Bronx. He received a phone call from his mother, § 87(2)(b) § 87(2)(b) in which she told him to come meet her for dinner at a Kennedy Fried Chicken several blocks away. § 87(2)(b) was already late to meet her, so he left in a hurry. § 87(2)(b) was dressed in a jacket, a black hooded sweatshirt, black sweatpants and a black knit hat. He was alone and carried no objects or bags.

Outside, § 87(2)(b) jogged westbound on § 87(2)(b) toward the restaurant. At the intersection of § 87(2)(b) and § 87(2)(b), he noticed an unmarked grey or white minivan traveling toward him in the opposite direction. The van quickly stopped next to him. An individual, identified by investigation as Det. Rolando Carbonell, exited the passenger side door of the van. § 87(2)(b) described him as a dark-skinned Hispanic male about 5'11" to 6'0" tall in plainclothes, and did not realize he was a police officer at the time.

Det. Carbonell yelled at § 87(2)(b) to "stop." He did not identify himself as a police officer and was not wearing any clothing that made it clear he was an officer. § 87(2)(b) was afraid and, without saying anything, began running at a faster pace, continuing westbound.

Det. Carbonell chased § 87(2)(b) on foot. He threw a radio at § 87(2)(b) which struck him in the back of his right calf. This caused no injury. § 87(2)(b) described the radio as a tall, black "walkie-talkie." § 87(2)(b) then heard the sound of the van turning around and believed Det. Carbonell returned to the van to pursue him.

§ 87(2)(b) ran into the § 87(2)(b) at § 87(2)(b) at the corner of § 87(2)(b). He screamed, "Help, someone is chasing me." There were several people in the store, who did not respond to him. § 87(2)(b) moved to the leftmost aisle in the store. Det. Carbonell followed him inside almost right away. He was followed by a white male in plainclothes, identified by investigation as Det. James Mako.

Det. Carbonell had his gun drawn, and pointed it at § 87(2)(b) as he approached. He told § 87(2)(b) to "stay right there," then pushed him against the wall with one hand. Det. Mako grabbed his right arm with both hands and flung him to the ground. Det. Carbonell holstered his gun and handcuffed § 87(2)(b) who at this point was lying facedown on the floor. § 87(2)(b) asked, "What did I do?" Det. Carbonell responded by slapping him on his upper right cheek using the back of his hand, which left a mark.

§ 87(2)(b) was escorted outside, where there were several additional officers. A black female officer, identified by investigation as Det. Nancy Vazquez, was wearing a vest that read "Police." Seeing this, § 87(2)(b) realized for the first time he was interacting with police officers. He was placed in a van, and the officers called his mother. § 87(2)(b) arrived at the location and the officers released § 87(2)(b) to her. § 87(2)(b) believed he was not charged with a crime. § 87(2)(b) took him to § 87(2)(b) later that evening. He suffered a bump to his forehead from striking the floor, a mark to his face from being slapped, and a scratch on his left elbow from being pushed against the wall.

50-H Testimony

On § 87(2)(b) § 87(2)(b) gave testimony for a 50-H hearing in regard to a civil suit regarding this incident (encl. 7). § 87(2)(g)

Complainant:

§ 87(2)(b) § 87(2)(b) is a § 87(2)(b)-old Hispanic female § 87(2)(b), with brown hair and brown eyes. She is § 87(2)(b)'s mother.

Photographs of § 87(2)(b)'s Injuries

§ 87(2)(b) provided the CCRB several photographs she took of § 87(2)(b) on January 3, 2009, documenting his injuries (encl. 8). The photographs demonstrate § 87(2)(b) had a small scratch on his right forearm, a small, round mark on his left elbow, and some small abrasions or bruises to his forehead.

CCRB Testimony and 50-H Testimony

§ 87(2)(b) was interviewed at the CCRB on January 23, 2009 (encl. 9). She gave testimony for a 50-H hearing in regard to her civil suit over this incident on § 87(2)(b) (encl. 10). § 87(2)(g) § 87(2)(a) Gen.Mun. §50-H(3)

Witness: § 87(2)(b)

In-Person Statements

On January 27, 2009, the undersigned and Inv. Robert Tanner went to the § 87(2)(b) and spoke to § 87(2)(b) an employee of that store. § 87(2)(b)'s first language is Spanish, and he speaks only limited English. He witnessed the incident, and provided, in English, basic details of what he observed. He saw § 87(2)(b) run into the store, followed by several officers who pointed guns at § 87(2)(b) and threw him to the ground. § 87(2)(b) was reluctant to participate in the CCRB's investigation, and would not allow the CCRB to photograph the interior of the store. He did sign a verification statement in Spanish, however, swearing and affirming that his statements were true (encl. 11). He also said he would be willing to speak to another investigator in Spanish over the phone.

Several phone calls were placed to § 87(2)(b) but the investigation was unable to reach him.

On November 4, 2009, the undersigned returned to the § 87(2)(b) with a Spanish-speaking CCRB employee and again located and spoke to § 87(2)(b). § 87(2)(b) did not want his conversation recorded or to provide a formal statement. He recounted in Spanish that after § 87(2)(b) entered the store, officers came inside holding guns in their hands, which they then pointed at § 87(2)(b). § 87(2)(b) did not witness an officer strike § 87(2)(b) though he saw officers bring him to the ground in order to handcuff him. He viewed a photograph of § 87(2)(b) and recognized him as the person involved in the incident.

NYPD Statements

Subject Officer: DET. ROLANDO CARBONELL

- *Det. Carbonell is a § 87(2)(b)-old Hispanic male § 87(2)(b), with brown hair and brown eyes. He has a dark complexion.*
- *On the date of the incident, he worked from 12:27 p.m. to 9:00 p.m. assigned to the chase vehicle on a narcotics operation. He was dressed in plainclothes, partnered with PO James Mako, and assigned to an unmarked minivan.*

Memo Book

Det. Carbonell had no memo book entries regarding this incident (encl. 12).

CCRB Testimony

On July 29, 2009, Det. Carbonell was interviewed at the CCRB (encl. 13).

On January 2, 2009, Det. Carbonell's field team was scattered throughout the neighborhood around § 87(2)(b) and § 87(2)(b), § 87(2)(b) and § 87(2)(b) making observations of possible narcotics activity. Det. Carbonell said the area is a "drug-prone area," and when asked what kinds of narcotics are prevalent, he said, "everything." He was not looking for any particular type of drug activity. Det. Carbonell and Det. Mako were alone in their vehicle; Det. Mako was driving, with Det. Carbonell in the front passenger seat.

While traveling eastbound on § 87(2)(b), Det. Carbonell observed § 87(2)(b) walking westbound on the south sidewalk. He was walking briskly, but not running, and was alone. There were not many other pedestrians around. It was dark out but there were streetlights nearby which clearly illuminated § 87(2)(b). He was carrying an object in his right hand that appeared to be contained within a clear plastic bag, which Det. Carbonell was able to see because it was shining in the dark. Det. Carbonell could only see the top part of the plastic bag and was unable to see any part of the actual object inside the bag or to describe its appearance to the CCRB.

As § 87(2)(b) passed the car, he held the object to his face and appeared to smell it. This action was the only reason Det. Carbonell had for suspecting him of criminal activity. Det. Carbonell suspected the object was marijuana, stating to the CCRB that "[marijuana is] the only thing people smell." He decided to stop § 87(2)(b). He had no conversation with Det. Mako about his observations or suspicion of § 87(2)(b).

Det. Carbonell opened the car door, began to exit, and said to § 87(2)(b) "Police." He was wearing a bulletproof vest and his shield was on a chain around his neck on the outside of his clothing. No other clothing identified him as a police officer. Det. Carbonell intended to check what § 87(2)(b) had in his hand and to check his identification. He did not believe he had probable cause to cite § 87(2)(b) for any crime or violation and believed he was free to leave.

§ 87(2)(b) immediately began running westbound. Det. Carbonell exited the car and chased him on foot, running as fast as he could. He continued to yell, "Stop, police," repeatedly. § 87(2)(b) did not react to these commands. Det. Carbonell did not put any messages over the radio and did not remember if he had his radio in his hand, but said that his radio was the only object he might have been holding. He did not throw a radio or any other object at § 87(2)(b).

He chased § 87(2)(b) to the § 87(2)(b) never losing sight of him. Det. Mako followed in the van. When he reached the store, § 87(2)(b) turned toward Det. Carbonell, who was about ten feet away. § 87(2)(b) appeared to place something in his mouth and went into the grocery store. Det. Carbonell entered after him. Det. Mako arrived at around this time and also went inside.

Inside the store, an employee gestured toward the rear of the store, where the detectives found § 87(2)(b). They tried to place him in handcuffs and § 87(2)(b) resisted. The officers then put him on the ground, in a manner Det. Carbonell could not describe. Det. Carbonell was afraid § 87(2)(b) might have a weapon on him. Neither detective struck § 87(2)(b) in the face or ever drew a gun. The officers successfully handcuffed § 87(2)(b) and brought him outside. Det. Carbonell thought that at this point he could charge § 87(2)(b) § 87(2)(a) FCT § 380.1

When asked, Det. Carbonell could not remember how many people were on the street when § 87(2)(b) ran from him, but described the streets as "pretty empty" of bystanders. Det. Carbonell's supervisor, Sgt. Kathleen McNally, arrived at the location. After the detectives informed her what had happened, Sgt. McNally decided to prepare a juvenile report for § 87(2)(b) which he described as equivalent to an arrest. Det. Carbonell did not know what § 87(2)(b) was charged with. The officers searched § 87(2)(b) and searched the store, but did not locate any marijuana or any other contraband.

Witness Officer: DET. JAMES MAKO

- *Det. Mako is a § 87(2)(b)-old white male § 87(2)(b), with brown hair and brown eyes.*
- *On January 2, 2009, Det. Mako worked from 12:27 p.m. to 9:00 p.m. on a narcotics operation. He was partnered with Det. Carbonell, dressed in plainclothes and assigned to an unmarked minivan.*

Memo Book

Det. Mako had no memo book entries about this incident (encl. 14).

CCRB Testimony

On July 29, 2009, Det. Mako was interviewed at the CCRB (encl. 15).

Det. Mako confirmed he was driving the officers' van when they spotted § 87(2)(b). Det. Mako saw § 87(2)(b) but was unaware what, if anything, he did while he was walking, and did not notice anything suspicious about him. When § 87(2)(b) was about two feet away from the officers' vehicle, Det. Carbonell told Det. Mako to stop the car. He did not explain why. Det. Mako stopped the car and Det. Carbonell got out and verbally identified himself as a police officer to § 87(2)(b) who immediately began running westbound on § 87(2)(b). Det. Carbonell ran after him, leaving the passenger side door open. Det. Mako got out of the van, walked to the passenger side and shut the door, then returned to the driver's seat and made a U-turn. This took about 15 seconds, during which time he could not see Det. Carbonell or § 87(2)(b). When he saw them again, they were running toward § 87(2)(b) at a full sprint. Det. Mako did not see Det. Carbonell holding any objects or throw any objects at § 87(2)(b). § 87(2)(b)'s flight made Det. Mako think he might have drugs or a weapon. He followed Det. Carbonell and § 87(2)(b) in the vehicle to the § 87(2)(b) at § 87(2)(b). He could see them during this time. Then they went inside. Det. Mako entered the store after them, but they had disappeared from view. He found them in the middle of the store. Det. Carbonell was holding his handcuffs and already trying to apprehend § 87(2)(b) who was swinging his arms at Det. Carbonell and wrestling with him. Det. Mako approached to assist the apprehension and the three of them fell to the ground. Det. Mako could not articulate what caused them to fall but said it was a controlled takedown. On the ground, both detectives wrestled § 87(2)(b)'s arms behind his back. Det. Mako still did not know why § 87(2)(b) was being apprehended or handcuffed. Neither detective drew a gun or made contact with § 87(2)(b)'s face.

Witness Officers: DET. NANCY VAZQUEZ, DET. PHILLIP PARADISO, and SGT. KATHLEEN MCNALLY

- *Det. Vazquez is a § 87(2)(b)-old Hispanic female § 87(2)(b), with black hair and black eyes.*
- *Det. Paradiso is a § 87(2)(b)-old white male § 87(2)(b), who is bald and has blue eyes.*
- *Sgt. McNally is a § 87(2)(b)-old white female § 87(2)(b), with brown hair and blue eyes.*

Memo Books

None of the above officers had any relevant memo book entries (encl. 16 and 18).

CCRB Testimony

Det. Vazquez was interviewed at the CCRB on April 14, 2009 (encl. 20). Det. Paradiso was interviewed at the CCRB on June 23, 2009 (encl. 19). Sgt. McNally was interviewed at the CCRB on July 30, 2009 (encl. 17). § 87(2)(g)

These officers all arrived at the § 87(2)(b) in response to a radio call put over to the field team by Det. Mako, in which he said that they were pursuing a suspect. When they arrived, Det. Carbonell and Det. Mako had § 87(2)(b) in handcuffs and were standing outside the store. § 87(2)(b) With the consent of the store employees, the officers conducted an extensive search of the inside of the store in an attempt to find whatever contraband § 87(2)(b) may have disposed of, without success.

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Documents

Tactical Plan

The relevant tactical plan indicates that Lt. James Davis was assigned to a vehicle with Det. Carbonell and Det. Mako (encl. 23). Both detectives, however, confirmed in their CCRB testimony that the tactical plan is incorrect and that only the two of them were working together.

Command Log

§ 87(2)(b)'s arrest is logged in the 44th Precinct's command log, confirming he was issued a juvenile report, § 87(2)(a) FCT § 380.1

Summons/Arrest for Incident and Disposition

- § 87(2)(a) FCT § 380.1

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b)'s behalf on § 87(2)(b), claiming "sustained physical and psychological injuries and endured conscious pain and suffering, humiliation, and embarrassment." § 87(2)(b) and § 87(2)(b) are seeking \$500,000 as redress (encl. 26).
- As noted above, 50-H hearings were held in connection with the civil suit on § 87(2)(b).
- As of November 10, 2009, the case is still open and under investigation by the Office of the Comptroller, according to information obtained from the New York City Law Department.

Civilian's Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians' CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (encl. 2D-E).

Subject Officer's CCRB History

- Det. Carbonell has been a member of the service for eight years. He has one substantiated CCRB allegation against him, for the use of discourteous language, in CCRB #200403550. The CCRB recommended command discipline and the NYPD issued instructions (encl. 2A-B).

Conclusion

Identification of Subject Officer(s)

- Det. Carbonell and Det. Mako acknowledged interacting with § 87(2)(b) and fit the physical descriptions of the subject officers § 87(2)(b) provided.

Allegations Not Pleaded

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: At § 87(2)(b) and § 87(2)(b), Det. Rolando Carbonell stopped § 87(2)(b)

Det. Carbonell exited his car, stated either “stop” or “police,” and approached § 87(2)(b) who ran away. Det. Carbonell stated that initially, he did not believe he had probable cause to cite § 87(2)(b) for any crime or violation, and that § 87(2)(b) was free to leave. Despite this, however, when § 87(2)(b) ran, Det. Carbonell chased after him. § 87(2)(b), § 87(2)(g)

A suspect’s flight will give rise to reasonable suspicion if, and only if, an officer has a founded suspicion upon which he may make a common-law right of inquiry. *Kamins* p. 2-67 – 2-68 (2008 ed.) (encl. 1E-F). § 87(2)(b), § 87(2)(g)

Det. Carbonell was suspicious of § 87(2)(b) solely because he saw § 87(2)(b) hold an object to his nose, apparently to smell it. The object was not visible to Det. Carbonell but appeared to be enclosed in clear plastic because it shined when illuminated by the overhead streetlights. Det. Carbonell believed this indicated § 87(2)(b) was holding marijuana in his hand. § 87(2)(b), § 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Standing alone, this innocuous action only gave rise to a limited request for information, not a common-law right to inquire. *Kamins* p. 2-30 (2008 ed.) (encl. 1G). § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(b), § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED] It is recommended that **Allegation A be Substantiated.**

Allegation B – Force: En route to § 87(2)(b) [REDACTED] Det. Rolando Carbonell struck § 87(2)(b) [REDACTED] with a radio.
§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is recommended that **Allegation B be Unsubstantiated.**

Allegation C – Force: At § 87(2)(b) [REDACTED] in the Bronx, Det. Rolando Carbonell pointed his gun at § 87(2)(b) [REDACTED]
§ 87(2)(b) [REDACTED] confirmed to the CCRB that Det. Carbonell pointed his gun at § 87(2)(b) [REDACTED] inside the store. Although did not provide a recorded statement to the CCRB, § 87(2)(b) [REDACTED] signed a verification statement in January of 2009, indicating that he was willing to attest to the truth of his statements. In November of 2009, he reiterated that Det. Carbonell pointed his gun at § 87(2)(b) [REDACTED] § 87(2)(b), § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
In order for an officer to draw and point his gun, he must possess a “reasonable fear for his own or another’s personal safety.” *Police Department v. Gliner*, OATH Index No. 955/00 (Sept. 6, 2000) (encl. 1H-K). § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is recommended that **Allegation C be Substantiated.**

Allegation D – Force: At § 87(2)(b) [REDACTED] in the Bronx, Det. Rolando Carbonell used physical force against § 87(2)(b) [REDACTED]
§ 87(2)(b) [REDACTED] alleged that Det. Carbonell struck him in the face with the back of his hand after he was handcuffed. Det. Carbonell and Det. Mako denied that this occurred and § 87(2)(b) [REDACTED]

did not witness any such event. § 87(2)(g) [redacted]
[redacted]
[redacted]
[redacted] It is recommended that **Allegation D** be **Unsubstantiated**.

§ 87(4-b), § 87(2)(g) [redacted]
[redacted]
§ 87(4-b), § 87(2)(g) [redacted]
[redacted]
[redacted]
[redacted]

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date